

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Elizabeth Johnson	Team: Team # 3	CCRB Case #: 201013521	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/01/2010 7:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/1/2012	Precinct: 75		
Date/Time CV Reported Mon, 10/04/2010 10:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/04/2010 10:57 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Dennis Friendly	02755	930185	NARCBBN
2. Officers			
3. LCD Patrick Ryan	00000	904977	NARCBBN
4. DT3 Peter Nangle	05601	925814	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. INS James Essig	00000	879610	NARCBBN
2. DT3 Jennifer Lavelle	01394	933921	NARCBBN
3. POM Jeffrey Lehn	15958	938842	NARCBBN
4. DT3 Phillip Smith	07158	907062	NARCBBN
5. DT3 Jelson Goyco	02019	926897	NARCBBN
6. POM David Solmonsohn	30125	933374	NARCBBN
7. DT3 Brian Wood	05728	918491	NARCBBN
8. POM Vincent Tiernan	21213	935846	NARCBBN
9. POM Raul Maisonet	22545	939385	NARCBBN
10. DT3 Willie Johnson	04104	925519	NARCBBN
11. POM Antonio Santana	30589	933323	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . LCD Patrick Ryan	Discourtesy: Lt. Patrick Ryan spoke obscenely to § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . DT3 Dennis Friendly	Discourtesy: Det. Dennis Friendly spoke obscenely to § 87(2)(b) and § 87(2)(b)	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On October 4, 2010, § 87(2)(b) called in this complaint to the CCRB on behalf of himself, his mother, § 87(2)(b) his girlfriend, § 87(2)(b) and their two children, § 87(2)(b) and § 87(2)(b) (encl. 4a-c). On October 1, 2010, at approximately 7:15pm, officers arrived at § 87(2)(b) in Brooklyn. The following allegations resulted:

Allegation A – Abuse of Authority: Officers entered and searched § 87(2)(b) in Brooklyn.

§ 87(2)(g)

Allegation B – Discourtesy: Lt. Patrick Ryan spoke obscenely to § 87(2)(b)

Allegation C – Discourtesy: Det. Dennis Friendly spoke obscenely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant: § 87(2)(b)

- § 87(2)(b)

CCRB Testimony

On November 1, 2010, § 87(2)(b) was interviewed in his home, located at § 87(2)(b) in Brooklyn (encl. 5a-c). On October 1, 2010, at approximately 7:15pm, § 87(2)(b) left his apartment, located at § 87(2)(b) in Brooklyn, to go to the store. His mother, § 87(2)(b) girlfriend, § 87(2)(b) § 87(2)(b)-old son, § 87(2)(b) and § 87(2)(b)-old son, § 87(2)(b) remained in the apartment. § 87(2)(b) left the apartment door open.

As § 87(2)(b) left the store to return home, he used his cell phone to call § 87(2)(b) to inquire as to whether he had forgotten to purchase any items at the store. § 87(2)(b) informed § 87(2)(b) that police officers were in their apartment looking for narcotics, and that § 87(2)(b)

§ 87(2)(b) was handcuffed. The officers informed § 87(2)(b) that if § 87(2)(b) did not return to the apartment, that his family would be detained, and then instructed her to disconnect from their telephone conversation.

§ 87(2)(b) returned to the apartment and found § 87(2)(b) and his sons in the hallway directly outside of the apartment. An officer, identified through the investigation as PO David Solmonsohn of Narcotics Borough Brooklyn North, stood with § 87(2)(b)'s family in the hallway and requested his identification as he approached. § 87(2)(b) described PO1 as a white male who was approximately 5'9" and 260 pounds with blonde hair and brown eyes, and appeared to be in his early forties. § 87(2)(b) complied in providing his identification, upon which PO Solmonsohn searched the pockets of his jacket and pants. PO Solmonsohn removed § 87(2)(b)'s cell phone, cash and keys, and handed them to an officer, whose name he believed to be "PO Richardson," but who was identified through the investigation as Lt. Patrick Ryan of Narcotics Borough Brooklyn North. § 87(2)(b) described Lt. Ryan as a white male who was approximately 5'6" to 5'7", 200 to 220 pounds with a muscular build, dark cut hair, and appeared to be in his thirties. Lt. Ryan asked § 87(2)(b) "Do you remember me?" and § 87(2)(b) agreed that he did. § 87(2)(b) stated that this incident is the third time officers have searched his home, and that he recognized Lt. Ryan from the second incident, for which he filed both a CCRB complaint and a civil suit. Lt. Ryan told § 87(2)(b) "You're a piece of shit. You're full of shit. You're life is pathetic because you sell drugs to minors. We know there are a lot of shootings going on around here, and you're distributing drugs, so you're going to die." § 87(2)(b) stated that he does not sell drugs, because he is interested in managing athletic teams. Lt. Ryan told § 87(2)(b) "You have a nasty mother," and § 87(2)(b) stated, "What do you expect from a woman who just had major surgery?" § 87(2)(b) informed § 87(2)(b) in the hallway that the officers had told her that they were at the apartment, "For the drugs that we're going to find." § 87(2)(b)'s son, § 87(2)(b) informed him that Lt. Ryan had pointed a firearm in his face upon entering the apartment, which § 87(2)(b) did not directly witness. § 87(2)(b) asked Lt. Ryan why he would point his gun at his son, to which Lt. Ryan responded, "Shut the fuck up." Lt. Ryan told § 87(2)(b) to sit down in the hallway.

Approximately 12 officers were present, all dressed in plain clothes. Approximately eight of the officers, including Lt. Ryan and an officer, identified through the investigation as Det. Dennis Friendly of Narcotics Borough Brooklyn North, searched the apartment. § 87(2)(b) described Det. Friendly as a black male who is approximately 5'6" and 130 pounds with short cut facial hair and appeared to be in his late forties. The officers also employed a narcotics dog in all of the three bedrooms, the closets in the hallway, the kitchen and living room. Det. Friendly asked § 87(2)(b) to step into the apartment, during which § 87(2)(b) observed officers search the kitchen and living room. The narcotics dog was in the living room eating his children's Apple Jacks cereal off the ground. § 87(2)(b) did not directly witness officers search the three bedrooms, but noticed after the officers left that the rooms were in disarray. Det. Friendly handed § 87(2)(b) a search warrant, number § 87(2)(b), which included Det. Friendly's name. § 87(2)(b) provided the search warrant at the time of his interview. After the officers concluded the search of the apartment, they left at approximately 10:20pm. Nothing was recovered as a result of the search, and no arrests were made in regards to this incident. § 87(2)(b) stated that he does not use narcotics and had neither consumed nor been in possession of narcotics on the date of the incident. He stated that he was arrested § 87(2)(b), but has no arrests in regards to firearms, and has not been arrested pertaining to narcotics or firearms since.

Victim: § 87(2)(b)

- § 87(2)(b)

CCRB Testimony

On November 16, 2010, § 87(2)(b) was interviewed at the CCRB (encl. 7a-e). § 87(2)(g)

On October 1, 2010, at approximately 7:15pm, § 87(2)(b) was in her three bedroom apartment, located at § 87(2)(b) in Brooklyn. § 87(2)(b) was sitting in bed with her § 87(2)(b)-old son, § 87(2)(b) while helping him use a computer. Her § 87(2)(b)-old son, § 87(2)(b) was in the bathroom, § 87(2)(b)'s mother, § 87(2)(b) was in a separate bedroom. § 87(2)(b) left the apartment to go to the store, and while he had closed the front door of the apartment, but did not lock it.

A few moments after § 87(2)(b) left, three officers entered with their guns pointed at her and § 87(2)(b). The officers holstered their guns. An unidentified officer (PO1) handcuffed § 87(2)(b) and escorted her and § 87(2)(b) into the living room. § 87(2)(b) described PO1 as a white male who was approximately 5'3" with dark hair.

In the living room, § 87(2)(b) was instructed to sit on the couch with both of her sons. More than ten officers were present, including an officer, identified through the investigation as Det. Dennis Friendly of Narcotics Borough Brooklyn North. § 87(2)(b) described Det. Friendly as a black male who was between 5'2" and 5'4" with a slim build and appeared to be in his late thirties to mid-forties. Det. Friendly asked, "Where are the fucking drugs?" § 87(2)(b) told him that there were no drugs in the apartment. Det. Friendly asked § 87(2)(b) "Where is the kids' father?" and § 87(2)(b) explained that he had left the apartment. Det. Friendly told § 87(2)(b) to call § 87(2)(b) but she stated that she did not know his telephone number.

Det. Friendly instructed additional officers to escort § 87(2)(b) and § 87(2)(b) into the hallway directly outside of the apartment, and also brought chairs for them to sit while an officer, identified through the investigation as Det. David Solmonsohn of Narcotics Brooklyn North, stood with them silently. Det. Friendly again instructed § 87(2)(b) to call § 87(2)(b) but she refused to do so. Det. Friendly told § 87(2)(b) "If we find any fucking drugs in the apartment, you're gonad down," to which § 87(2)(b) responded, "Whatever."

Det. Friendly instructed officers to search the apartment. After approximately 15 to 20 minutes, § 87(2)(b) arrived in the hallway and asked what was happening. Det. Friendly stated to § 87(2)(b) "You're a big time drug dealer. Where are the fucking drugs?" Det. Friendly asked § 87(2)(b) to enter the apartment. § 87(2)(b) stated that she heard Det. Friendly state to § 87(2)(b) "The next time we see you, you'll be in a body bag," but was unable to overhear any additional details of their conversation.

As the officers left, Det. Friendly handed either § 87(2)(b) or § 87(2)(b) a search warrant. § 87(2)(b) stated that the warrant did not include § 87(2)(b)'s name. As she entered the apartment, she noticed items in disarray, and § 87(2)(b) showed § 87(2)(b) that the bathroom door was damaged. § 87(2)(b) informed § 87(2)(b) that officers had kicked in the door and pointed their guns at him before removing him to the living room.

Victim: § 87(2)(b)

- § 87(2)(b)

CCRB Testimony

On November 1, 2010, § 87(2)(b) was interviewed in her home, located at § 87(2)(b) in Brooklyn (encl. 6a-c). § 87(2)(g)

On October 1, 2010, at approximately 7:15pm, § 87(2)(b) was awake in her bedroom at § 87(2)(b) in Brooklyn when officers entered. § 87(2)(b)'s son, § 87(2)(b) had recently left the apartment. The telephone next to § 87(2)(b)'s bed rang, which § 87(2)(b) answered. § 87(2)(b) asked whether officers were in the apartment, which § 87(2)(b) confirmed. No officer had any telephone conversation with § 87(2)(b). An officer, identified through the investigation as Det. Dennis Friendly of Narcotics Borough Brooklyn North, entered and attempted to take the receiver from § 87(2)(b) and asked an unidentified officer (PO1) "Why'd you let her use the telephone man?" § 87(2)(b) described Det. Friendly as a black male officer looked like Eddy Murphy, of average height and slim build, and appeared to be in his thirties. § 87(2)(b) hung up and was escorted to the living room where she observed § 87(2)(b)'s girlfriend, § 87(2)(b) and two sons, § 87(2)(b) and § 87(2)(b) sitting on the couch. § 87(2)(b) asked an officer, identified through the investigation as Lt. Patrick Ryan of Narcotics Borough Brooklyn North, why § 87(2)(b) was under arrest and Lt. Ryan answered, "For the drugs we're going to find." § 87(2)(b) described Lt. Ryan as a white male who was approximately 5'0" and 5'1" with a slim build and short spiky hair and appeared to be in his forties.

The officers instructed § 87(2)(b) and § 87(2)(b) to sit in the hallway outside of the apartment door, which the officers propped open and began to search the apartment. After an unspecified amount of time, § 87(2)(b) arrived. Lt. Ryan told § 87(2)(b) "I don't know what you have in your pockets," and searched him. § 87(2)(b) did not observe any officer use profanity at any time. She had not observed an officer draw or point his gun, nor did she have any knowledge of an officer doing so.

Det. Friendly asked § 87(2)(b) to step inside the apartment, but § 87(2)(b) remained in the hallway and was unable to provide any details of their interaction while inside the apartment. At the conclusion of the officers' search, Det. Friendly handed § 87(2)(b) a search warrant. Nothing was recovered from the search and no arrests were made.

Attempts to Contact Civilians

At the time of her CCRB interview, § 87(2)(b) stated that § 87(2)(b) has been diagnosed with a mental disability and autism, and she would prefer that neither he nor § 87(2)(b) provide statements regarding the incident (encl. 7a-e).

NYPD Statement(s):

Subject Officer: LT. PATRICK RYAN

- Lt. Patrick Ryan was § 87(2)(b)-old at the time of the incident and is a white male who is 5'8" and 180 pounds with brown hair and brown eyes. He is assigned to Narcotics Borough Brooklyn North.
- On October 1, 2010, Lt. Ryan was dressed in plain clothes and worked from 4:00pm to 12:00am. He was assigned to supervise the execution of a search warrant and was working with Det. Dennis Friendly, Det. Lavell, Det. Wood and Det. § 87(2)(b) and was assigned to an unmarked vehicle, license plate number § 87(2)(b)

Memo Book

Lt. Patrick Ryan did not provide his memo book at the time of his interview or in response to subsequent requests.

CCRB Testimony

On January 20, 2011, Lt. Patrick Ryan was interviewed at the CCRB (encl. 8a-b) On October 1, 2010, at approximately 7:15pm, Lt. Ryan and the Narcotics Borough Brooklyn North team were in possession of a search warrant for § 87(2)(b) in Brooklyn. § 87(2)(e)

§ 87(2)(b)

§ 87(2)(b) He was not aware of any additional names or aliases for § 87(2)(b) Lt. Ryan was also in possession of a photograph of § 87(2)(b) but stated that he was not familiar with § 87(2)(b) prior to this incident, and had no prior interactions with him, nor had he ever conducted a search of his residence prior to this incident. Det. Friendly did not indicate to Lt. Ryan at any time that he was familiar with § 87(2)(b) or had conducted previous searches of the location. The search warrant was a no-knock warrant and did not limit any area of the apartment from being searched.

Upon arriving to the location, Lt. Ryan stated that he was assigned to the hydro, and was responsible for opening the door. As the door was unlocked, he opened the door and allowed the rest of the team to enter. He did not enter the apartment until the location was secured by the rest of the team. Lt. Ryan did not draw his gun and, as he remained in the hallway, he did not observe any other officer do so. Lt. Ryan stated that the first four officers to enter likely drew and pointed their firearms to ensure their safety through protocol of executing search warrants.

Once the location was secure, Lt. Ryan entered the location, where he found two females, identified through the investigation as § 87(2)(b) and § 87(2)(b) as well as two small children, identified through the investigation as § 87(2)(b) and § 87(2)(b) § 87(2)(b) was handcuffed as a safety precaution, but as § 87(2)(b) was elderly and appeared to be disabled, because she was seated in a mobile chair, Lt. Ryan did not perceive her to be a potential threat to the officers' safety. He instructed that § 87(2)(b) and the two children be removed to the hallway.

In the hallway, Lt. Ryan explained to § 87(2)(b) and § 87(2)(b) why the officers were in their home and what they were searching for. He did not use profanity at any time, and did not state that the officers were searching the location, "For the drugs we're going to find," and did not observe any other officer do so. He did not recall either § 87(2)(b) or § 87(2)(b) using profanity at any time. Lt. Ryan did not remain in the hallway, and was unable to recall which officer stood with § 87(2)(b) and the two children outside of the apartment.

Once the officers began searching the apartment, Lt. Ryan received a phone call from the confidential informant explaining that § 87(2)(b) had left the apartment and was not inside. From the extreme disarray of the apartment, Lt. Ryan did not believe that the officers would be able to locate narcotics within the residence, and requested that a narcotics dog arrive to assist in locating any possible narcotics.

§ 87(2)(b) returned to the apartment, and Lt. Ryan observed that he had a disfigured hand and appeared to be the person on the photograph. Lt. Ryan asked § 87(2)(b) to step inside the apartment, where he explained to § 87(2)(b) why officers were searching the apartment. § 87(2)(b) responded, "I don't do that in here anymore," which Lt. Ryan perceived to mean that § 87(2)(b) no longer sold narcotics from his home. Lt. Ryan did not use profanity or tell § 87(2)(b) to "Shut the fuck up," or "Where are the fucking drugs?" and did not observe any other

officer do so. He did not tell § 87(2)(b) that his mother “was nasty,” or that he would die, nor did he make the statement, “The next time I see you you’ll be in a body bag,” and did not observe any other officer do so. § 87(2)(b) was searched to ensure that he had not acquired narcotics outside of the apartment, and also to ensure that he was not in possession of a weapon. Lt. Ryan was unable to recall which officer searched § 87(2)(b). As no narcotics were located, the officers left.

Subject Officer: DET. DENNIS FRIENDLY and DET. PETER NANGLE

- Det. Friendly was § 87(2)(b) old at the time of the incident and is a black male who is 5’11” and 165 pounds with black hair and brown eyes. He is assigned to Narcotics Borough Brooklyn North.
- On October 1, 2010, Det. Friendly worked from 4:27pm to 1:00am on October 2, 2010, and was dressed in plain clothes. Det. Friendly was assigned as the arresting officer and Bunker 1 of the Narcotics Borough Brooklyn North Field team in order to execute a search warrant. Det. Friendly was assigned to a rental vehicle, a four door black Jeep, number § 87(2)(b).
- Det. Peter Nangle was § 87(2)(b) -old at the time of the incident and is a white male who is 5’11” and 195 pounds with gray hair and blue eyes. He is assigned to Narcotics Borough Brooklyn North.
- On October 1, 2010, Det. Nangle was dressed in plain clothes and worked a day tour from 5:30pm to 12:00am. He was assigned to Bunker 2 of the Narcotics Borough Brooklyn North field team in order to execute a search warrant.

Memo Book

Det. Dennis Friendly’s memo book from October 1, 2010 states that at 6:00pm, § 87(2)(e), § 87(2)(f)

At 6:20pm, Det. Friendly arrived for controlled buy attempt. At 6:40pm, Det. Friendly noted a positive buy and was en route to New Lots Avenue and Georgia. At 6:45pm, Det. Friendly arrived at New Lots Avenue and Georgia, and a payment of \$50.00 was recovered from the controlled buy, and Det. Friendly noted a payment of \$100.00 for a search warrant, number § 87(2)(b), which he noted was obtained on § 87(2)(b). At 6:55pm, Det. Friendly arrived at a tactical meeting and at 7:05pm, he was en route to § 87(2)(b) in Brooklyn. At 7:15pm, Det. Friendly arrived at the location to execute the search warrant. He noted two under arrest, including § 87(2)(b) and § 87(2)(b). At 9:00pm, § 87(2)(b) arrived to the location and was placed under arrest. At 9:30pm, Det. Friendly noted that the three arrests were voided due to negative results from the search warrant (encl. 11a-b).

Det. Peter Nangle did not provide his memo book at the time of his interview or in response to subsequent requests.

CCRB Testimony

On February 22, 2011 and on March 1, 2011, Det. Dennis Friendly and Det. Peter Nangle were interviewed at the CCRB, respectively (encl. 12a-c, 13a-b). § 87(2)(g)

Det. Friendly stated that, prior to the incident, he was not familiar with § 87(2)(b) had never arrested § 87(2)(b) made any observations of § 87(2)(b) or searched the location at any time, nor was he aware of any other officers' familiarity with § 87(2)(b) or the location. Upon arriving to the location, Det. Friendly was in possession of a "no-knock" warrant, and as he was assigned to Bunker 1 of the Narcotics Borough Brooklyn North field team, he was the first officer to enter the location. Det. Nangle added that a Hydro and ram were used to enter the location. Det. Friendly and Det. Nangle entered with their guns drawn. Det. Friendly stated that, as he was uncertain as to who was inside the location, and whether or not there were any weapons or threats to their safety inside, they drew their guns to ensure their safety. § 87(2)(e), § 87(2)(f)

§ 87(2)(b)

§ 87(2)(b)

Det. Friendly immediately entered the living room, where he did not observe any individuals, and proceeded to one of the two rear bedrooms. Det. Friendly encountered a female, identified through the investigation as § 87(2)(b) who was lying in bed. Det. Friendly identified himself as a police officer and informed § 87(2)(b) that officers were inside her home in order to execute a search warrant. Det. Friendly had a female officer, whom he was unable to identify, enter the bedroom and assist § 87(2)(b) in getting dressed. Det. Friendly returned to the living room, where he stated a female, identified through the investigation as § 87(2)(b) was handcuffed. Det. Nangle stated that he only remained inside the location for approximately two to three minutes until it was secure, but did not participate in either kicking open any doors, handcuffing any individuals, or searching the apartment.

Det. Friendly stated that two children, identified through the investigation as § 87(2)(b) and § 87(2)(b) were inside the location, but he was unable to recall in which room they were at the time he entered. Det. Friendly did not point his gun at either § 87(2)(b) or § 87(2)(b) and did not observe any other officer do so. Det. § 87(2)(b) did not recall kicking in or breaking the bathroom door. He stated if the door was locked, he and the field team would have used a hydraulic device in order to open the door, but Det. Friendly was unable to recall whether such events occurred, and did not recall observing any damage to any of the doors inside of the location.

§ 87(2)(b) and § 87(2)(b) were seated in chairs in the hallway outside of the front apartment door. Det. Friendly stated that § 87(2)(b) and § 87(2)(b) were upset, and repeatedly asked why officers were inside the apartment. Det. Friendly again explained that the officers were conducting a search warrant. At no time did he or Det. Nangle tell § 87(2)(b) or § 87(2)(b) that officers were inside the location, "For the drugs we're going to find." He did not use profanity, specifically in stating, "Where are the fucking drugs?" or "Shut the fuck up," and did not observe any other officer make such statements. Det. Friendly did not recall whether either § 87(2)(b) or § 87(2)(b) used profanity at any time. Det. Friendly requested that § 87(2)(b) contact § 87(2)(b) but she refused to do so. Either § 87(2)(b) or § 87(2)(b) informed Det. Friendly that officers had searched their apartment in the past, to which he stated he was unaware and had no participation in any prior searches. Det. Friendly entered the location and participated in searching. He stated that every room was searched, as the search warrant did not stipulate any specific areas within the apartment. A narcotics canine was called to the location, and Det. Friendly explained that a narcotics dog is always used during every search.

At approximately 9:00pm, § 87(2)(b) arrived at the location. Det. Friendly spoke with § 87(2)(b) and explained why the officers were searching the apartment. Det. Friendly and Det. Nangle did not use profanity when addressing § 87(2)(b) specifically in stating, "Where are the fucking drugs?" nor did they state, "The next time we see you, you'll be in a body bag." Det. Friendly and Det. Nangle did not observe any other officer make such statements. Det. Friendly

stated that, as § 87(2)(b) had not been inside of the location at the time officers entered the apartment, he frisked and searched § 87(2)(b) to ensure that he was not in possession of any weapons or narcotics that may have been obtained while § 87(2)(b) was out of the apartment. Det. Friendly provided § 87(2)(b) with a copy of the search warrant. As no narcotics were recovered during the search, no arrests were made and the officers left the location.

Witness Officers: PO DAVID SOLMONSOHN and PO JEFFREY LEHN

- *PO David Solmonsohn was § 87(2)(b)-old at the time of the incident and is a white male who is 6'0" and 195 pounds with brown hair and blue eyes. He is assigned to Narcotics Borough Brooklyn North.*
- *On October 1, 2010, PO Solmonsohn worked from 3:27pm to 12:00am on October 2, 2010, and was dressed in plain clothes. He was assigned to the "Cuff and Toss" position of the Narcotics Borough Brooklyn North Field Team in order to conduct a search warrant, and was partnered with Det. Brian Wood. PO Solmonsohn was assigned to an unmarked vehicle, for which he was unable to provide a vehicle number or physical description.*
- *PO Jeffrey Lehn was § 87(2)(b)-old at the time of the incident and is a white male who is 6'0" and 230 pounds with blonde hair and blue eyes. He is assigned to Narcotics Borough Brooklyn North.*
- *On October 1, 2010, PO Lehn was dressed in plain clothes and worked from 3:27pm to 12:00am and was assigned to the Narcotics Borough Brooklyn North field team to execute a search warrant. He was assigned to an unmarked vehicle.*

Memo Books

PO David Solmonsohn's memo book from October 1, 2010 states that at 6:30pm, he attended a tactical plan meeting pertaining to a search warrant, and at 6:40pm, he was en route to § 87(2)(b) in Brooklyn, with Det. Wood. At 6:45pm, Det. Wood recorded that a search warrant was executed at the location, and at 9:30, he was en route to the Narcotics Borough Brooklyn North stationhouse (encl. 9a-b).

PO Jeffrey Lehn's memo book from October 1, 2010 states that at 6:30pm, he attended a tactical meeting for a search warrant, and at 6:40pm, he was en route to § 87(2)(b) in Brooklyn. At 6:45pm, PO Lehn executed a search warrant, and at 9:30pm, he was en route to Narcotics Borough Brooklyn North (encl. 14a-b).

CCRB Testimonies

On February 22, 2011 and on March 2, 2011, PO David Solmonsohn and PO Jeffrey Lehn were interviewed at the CCRB, respectively (encl. 10a-b, 15a-b). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

On October 1, 2010, at approximately 7:15pm, the Narcotics Borough Brooklyn North team arrived at § 87(2)(b) in Brooklyn, in order to execute a search warrant. PO Lehn stated that the door was wide open. Det. Solmonsohn entered with his firearm drawn, as is procedure to ensure his safety when executing search warrants. PO Solmonsohn added that because he was unaware of how many individuals were within the location, or whether any individuals inside were in possession of weapons or posed a threat to his safety, he drew his gun. PO Lehn stated that he had just been transferred to Narcotics Borough Brooklyn North and the warrant was one of the first he participated in executing. Upon arriving to the location, PO Lehn stood behind the other officers as they entered. He stated that when he entered the apartment, he did not draw his gun, and was unaware as to whether additional officers did so.

PO Solmonsohn and PO Lehn were unable to recall how many individuals were inside the location. PO Solmonsohn and PO Lehn did not kick down any doors within the location, and did not observe any other officer do so, nor were they aware of any damage to any doors within the location. PO Lehn stated he only entered the apartment briefly after it was secured. PO Lehn did not participate in handcuffing any individual or in searching the location.

PO Solmonsohn stated that he stood in the hallway outside of the apartment with the individuals who had been found inside, but he did not have a specific recollection of § 87(2)(b) or § 87(2)(b). Although a photograph of § 87(2)(b) was shown to PO Solmonsohn, he did not recognize her. PO Solmonsohn was unable to recall whether he handcuffed either § 87(2)(b) or § 87(2)(b). PO Solmonsohn did not recall either § 87(2)(b) or § 87(2)(b) as disorderly, irate or belligerent. He was unable to recall whether either § 87(2)(b) or § 87(2)(b) used profanity at any time during the incident.

Det. Solmonsohn stated that after approximately 30 minutes, a male, identified through the investigation as § 87(2)(b) arrived at the location. He did not have any interaction or conversation with § 87(2)(b). Although PO Solmonsohn did observe an officer speak with § 87(2)(b) he was unable to recall which officer did so. PO Solmonsohn and PO Lehn did not use profanity at any time, specifically, “where are the fucking drugs,” “If we find any fucking drugs in the apartment, you’re going down,” nor did they say to any individual, “You’re going to die,” or “The next time we see you, you’ll be in a body bag.” They did not observe any additional officers make any such. PO Solmonsohn and PO Lehn were unable to recall whether § 87(2)(b) was searched, and did not observe any other officer do so.

NYPD Document

Narcotics Borough Brooklyn North Tactical Plan

The Narcotics Borough Brooklyn North Tactical Plan from October 1, 2010 indicates Lt. Ryan, Det. Friendly, Det. Nangle, PO Lehn and PO Solmonsohn were on duty. According to the tactical plan, the team was to go to § 87(2)(b) in Brooklyn, in order to execute a search warrant (encl. 16a-b).

Search Warrant

On § 87(2)(b), 2010, Det. Dennis Friendly of Narcotics Borough Brooklyn North obtained a search warrant, number § 87(2)(b), for § 87(2)(b) in Brooklyn. According to the warrant, officers were directed to search the premises for contraband, specifically crack cocaine, as well as currency and other proceeds from drug trafficking, and evidence of ownership to the apartment. § 87(2)(e), § 87(2)(b)

§ 87(2)(b) The warrant instructed officers to enter the location, without notice, in order to obtain any contraband (encl. 17a-c).

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of April 8, 2011 with regard to the incident.

Civilian(s) Criminal History

- As of April 6, 2011, Office of Court Administration records reveal no criminal convictions for § 87(2)(b)

- Giving the commonality of § 87(2)(b)'s surname, a search of the Office of Court Administration could not be conducted for her criminal conviction history.

- § 87(2)(b)
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]

Civilian(s) CCRB History

- § 87(2)(b) and § 87(2)(b) have filed the following CCRB complaints (encl. 3a-c):
 - § 87(2)(b)
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 - [REDACTED]
 [REDACTED]

Subject Officer(s) CCRB History

- Lt. Patrick Ryan has been a member of the service for 17 years and there are no substantiated CCRB allegations against him (encl. 2a). He is listed in two currently open cases:
 - CCRB case 201014097, involving allegations of an entry and search of a location, and a strip search.
 - CCRB case 201100511, involving an allegation of an entry and search of a location.
- Det. Dennis Friendly has been a member of the service for eight and there are four substantiated CCRB allegations against him. (encl. 2b-c). There are two currently open cases:
 - CCRB case 201001417, in which allegations of an entry and search of a location, physical force, threat of arrest, and refusal to provide name and shield were substantiated. The CCRB board recommended that Det. Friendly receive charges, but no NYPD disposition is currently available.
 Det. Friendly is also listed in a currently open case:
 - CCRB case 201003570, involving allegations of both discourteous and offensive language.
- Det. Peter Nangle has been a member of the service for 11 years and there are no substantiated CCRB allegations against him (encl. 2d).

Conclusion

Identification of Subject Officer(s)

As multiple officers collectively participated in entering and searching § 87(2)(b) in Brooklyn with a valid search warrant, and in pointing their guns, Allegation A is pleaded against “Officers.”

As § 87(2)(b) and § 87(2)(b) specified that Lt. Patrick Ryan and Det. Dennis Friendly, who acknowledged their involvement in the incident, spoke discourteously, Allegations B and C are pleaded against them, respectively.

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) indicated to them that officers damaged the bathroom door. § 87(2)(g)

Allegation A – Abuse of Authority: Officers entered and searched § 87(2)(b) in Brooklyn.

Search warrant, number § 87(2)(b) authorized officers to enter § 87(2)(b) of § 87(2)(b) in Brooklyn without prior notification. As a result, the investigation determined that the officers' entry and search of the location did not constitute misconduct, as they were authorized to do so under the parameters of a valid search warrant.

NYPD v. Gliner iterates a broad standard for the acceptable drawing and pointing of a firearm, stating that "an officer can draw his firearm and point it at another person so long as he has a reasonable fear for his own or another's personal safety" NYPD v. Gliner, OATH Index No. 955/00 (Sept. 6, 2000) (encl. 1a-f). § 87(2)(g)

Allegation B – Discourtesy: Lt. Patrick Ryan spoke obscenely to § 87(2)(b)

Allegation C – Discourtesy: Det. Dennis Friendly spoke obscenely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that Lt. Ryan and Det. Friendly spoke discourteously in making such statements as, "Shut the fuck up," and "Where are the fucking drugs?" § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Team: 3

Investigator: _____ Elizabeth Johnson _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date